

August 13, 2024

By Email

Federal Maritime Commission
Attn: David Eng, Secretary
800 North Capitol Street NW
Washington, DC 20573-0001
secretary@fmc.gov

Re: *MCS Indus., Inc. v. MSC Mediterranean Shipping Co. S.A.*, Docket No. 21-05

Dear Secretary Eng:

I write on behalf of MCS Industries, Inc. (“MCS Industries”), the prevailing Complainant in the above-referenced action, in which the Federal Maritime Commission (the “Commission”) recently affirmed the Presiding Officer’s February 16, 2024 Initial Decision on Remand. *See* Doc. Nos. 75 & 78. In her January 13, 2023 Initial Decision on Default in this action, Doc. No. 64, the Presiding Officer noted MCS Industries’ request for an award of attorney fees, costs, and expenses, *see* Doc. No. 57 at 19, but explained, “Commission Rule 254 states that ‘to recover attorney fees, the prevailing party must file a petition within 30 days after a decision becomes final’”, and determined on that basis that “the request for attorney’s fees is premature at this point and denied.” Doc. No. 64 at 23 (quoting 46 C.F.R. Section 502.254(c)). Commission Rule 254 relevantly provides that “[f]or purposes of this section, a decision is considered final when the time for seeking judicial review has expired or when a court appeal has terminated.” 46 C.F.R. Section 502.254(c)(1).

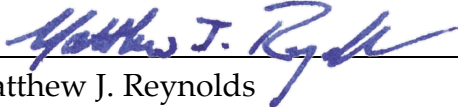
The Respondent in this action, MSC Mediterranean Shipping Company S.A. (“MSC”), previously appealed the Commission’s January 3, 2024 Order Partially Affirming Initial Decision on Default and Remanding for Further Proceedings, Doc. No. 68, to the U.S. Court of Appeals for the District of Columbia Circuit (Case No. 24-1007 in that court), and recently appealed the Commission’s July 16, 2024 Order Affirming Initial Decision on Remand, ECF No. 78, to that same court (Case No. 24-1262 in that court, now consolidated with Case No. 24-1007), where both appeals currently remain pending.

Consistent with Commission Rule 254, MCS Industries preserves its right to file with the Commission a petition for an award of its attorney fees, costs, and expenses in

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connection with this action within 30 days after the currently pending appeals of the Commission's Orders in this action have terminated.

Respectfully submitted,



Matthew J. Reynolds

Counsel for Complainant MCS Industries, Inc.

cc: Counsel for Respondent MSC Mediterranean Shipping Company S.A. (via email)

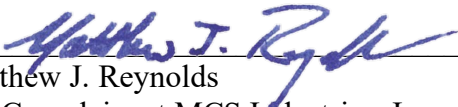
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent MSC Mediterranean Shipping Company S.A. by emailing copies of those documents to its counsel of record listed below:

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Counsel for Respondent MSC Mediterranean Shipping Company S.A.

Dated: August 13, 2024



Matthew J. Reynolds
For Complainant MCS Industries, Inc.